

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Filed: _____

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Index No.:

Lawrence Wright,

Plaintiff,

Plaintiff designates

KINGS County

as the place of trial

- against-

The City Of New York, Detective Nash, Detective Michael
Hinrichs, Detective Anthony Fontana, Detective Oliver Lopez,
Detective Michael Habert, Police Officer Saul Lopez, and
Assistant District Attorney Nicole Itkin,

SUMMONS

The basis of venue is:

The situs of occurrence

Defendants.

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TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, to, if the complaint is not served with the summons, to serve a notice of appearance, on the plaintiff's attorneys within twenty (20) days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: New York, New York
March 28, 2019

The nature of this action is for violation of Plaintiff's Civil and Constitutional Rights.
The relief sought is monetary damages.

LIAKAS LAW, P.C.



BY: Nicholas Mindicino, ESQ.

Attorney for Plaintiff

65 Broadway, 13th Floor

New York, N.Y. 10006

(212) 937-7765

If you fail to respond, a judgment will be entered against you, by default, and interest from the date of incident.

Defendants:

City of New York

Office of the Corporation Counsel

100 Church Street

New York, New York 10007

Detective Nash,

Detective Michael Hinrichs,

Detective Anthony Fontana,

Detective Oliver Lopez,

Detective Michael Habert

Police Officer Saul Lopez

1 Police Plaza, New York NY 10007

Assistant District Attorney Nicole Itkin

Kings County District Attorney's Office

350 Jay Street

Brooklyn NY 11201

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X Index No.:

Lawrence Wright,

Plaintiff,

VERIFIED COMPLAINT

- against-

The City Of New York, Detective Nash, Detective Michael
Hinrichs, Detective Anthony Fontana, Detective Oliver Lopez,
Detective Michael Habert, Police Officer Saul Lopez and
Assistant District Attorney Nicole Itkin,

Defendants.

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Plaintiff, by his attorneys, LIAKAS LAW, P.C., as and for this Complaint, alleges as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action in which plaintiff seeks relief through 42 U.S.C. § 1983 and § 1988, and the laws of the State of New York for the violation of his civil rights protected by the Fourth and Fourteenth Amendments, and the laws and Constitution of the State of New York.

2. The claim arises from the illegal detention of Plaintiff which occurred from January 12, 2013 through May 14, 2018 in which Officers of the New York City Police Department ("NYPD"), acting under color of state law, intentionally and willfully subjected plaintiff to false arrest and malicious prosecution.

3. Plaintiff seeks monetary damages (special, compensatory, and punitive) against defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper

JURISDICTION & VENUE

4. Within 90 days of the incidents alleged in this complaint, Plaintiff served upon Defendant, City of New York, a Notice of Claim setting forth the name and post office address

of Plaintiff, the nature of the claim, the time when, the place where and the manner in which the claim arose, and the items of damages or injuries claimed.

5. More than 30 days have elapsed since Plaintiff's demands and/or claims were presented to Defendant City of New York for adjustment and/or payment thereof, and the Defendant neglected and/or refused to make any adjustment and/or payment.

6. Venue is proper in the Supreme Court of the State of New York, Kings County, because the acts in question occurred in this county, and the defendants are subject to personal jurisdiction in the Supreme Court of this county.

PARTIES

7. Plaintiff, Lawrence Wright, at time of the incident described below was a resident of the State of New York, Kings County.

8. The City of New York (or "the City") is a municipal corporation organized under the laws of the State of New York. At all times relevant hereto, Defendant City, acting through the New York Police Department (or "NYPD"), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel. In addition, at all relevant times, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York. Moreover, Defendant City, acting through the Kings County District Attorney ("KCDA") was responsible for the policy, practice, supervision, implementation, and conduct of all KCDA matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all KCDA personnel. In addition, at all relevant times, Defendant City

was responsible for enforcing the rules of the KCDA, and for ensuring that the KCDA personnel obey the laws of the United States and the State of New York

9. Detective Nash, Detective Michael Hinrichs, Detective Anthony Fontana, Detective Oliver Lopez, Detective Michael Habert, and Police Officer Saul Lopez were at all relevant times police officers of the NYPD, and as such were acting in the capacity of agent, servant and employee of the City of New York. Defendants Nash, Hinrichs, Fontana, Oliver Lopez, Habert and Saul Lopez were personally involved in the illegal arrest and prosecution of Plaintiff and/or failed to intervene in the actions of their fellow officers. Defendants Nash, Hinrichs, Fontana, Oliver Lopez, Habert and Saul Lopez are sued in their individual and official capacities.

10. Assistant District Attorney Nicole Itkin was at all relevant times an Assistant to the KCDA, and as such was acting the capacity of agent, servant and employee of the City of New York. Defendant Itkin was personally involved in the illegal arrest and prosecution of Plaintiff. These actions occurred during and in relation to the investigation of Plaintiff, prior to a decision to formally charge him with any crime, and as such Itkin was acting in an investigatory rather than a prosecutorial capacity. Defendant Itkin is sued in her individual and official capacity.

FACTUAL ALLEGATIONS

11. In or about the year 2000, Plaintiff suffered a stroke, which left him with severe and lasting cognitive disabilities, including vascular dementia.

12. Vascular dementia is a medical condition which causes difficulties with reasoning, planning, judgment, memory and other thought processes. Vascular dementia is caused by brain damage from impaired blood flow to the brain and is often associated with stroke victims.

13. Plaintiff's vascular dementia limits his ability to reason, to recall facts with specificity, to communicate coherently, and to engage in sophisticated conversation. It also causes Plaintiff to be suggestable and agreeable.

14. Plaintiff's vascular dementia and the limitations imposed on him by it are obvious to anyone who speaks with him for more than a few minutes.

15. Plaintiff's stroke also left him with physical disabilities.

16. Denise Pannell was Plaintiff's neighbor and friend.

17. On or about January 10, 2013, Denise Pannell died in her apartment.

18. On or about January 12, 2013, NYPD officers learned of Ms. Pannell's death after being called to the area on complaints of a foul odor coming from Ms. Pannell's apartment.

19. On January 12, 2013, NYPD officers including Officer Saul Lopez and Detectives Nash and Hinrichs were in the area of Ms. Pannell's apartment investigating her death.

20. Plaintiff went to the area outside Ms. Pannell's apartment after learning of her death from another neighbor.

21. Plaintiff spoke with Officer Saul Lopez and Detectives Nash and Hinrichs outside Ms. Pannell's apartment, informing them that he was Ms. Pannell's friend and asking what happened.

22. Plaintiff's limited capacity was obvious to the officers during this conversation outside Ms. Pannell's residence.

23. Officer Lopez and Detectives Nash and Hinrichs took Plaintiff into custody regarding the death of Ms. Pannell. They brought Plaintiff to the 61st Police Precinct for questioning. During this time Plaintiff was in the officers' custody, and not free to leave.

24. At the time he was taken into custody, Detectives Nash and Hinrichs and Officer Lopez lacked probable cause or reasonable suspicion to believe Plaintiff had committed any crime.

25. At the 61st Precinct, Plaintiff was subjected to intense interrogation by Detectives Fontana, Oliver Lopez and Habert.

26. The interrogation of Plaintiff lasted approximately 17 hours.

27. During the interrogation, ADA Itkin joined the police officer defendants, and participated in the interrogation in an investigatory capacity.

28. During the interrogation, it was obvious to Detectives Nash, Hinrichs, Fontana, Oliver Lopez and Habert, Officer Saul Lopez, and ADA Itkin that Plaintiff was of limited mental capacity, that he was not able to fully understand the questions they were asking him, and that he was suggestable to ideas fed to him by the officers.

29. Plaintiff told the defendants that he was a stroke victim and that his condition made it hard for him to communicate. They were, therefore, aware of the cause of his obviously diminished capacity.

30. Any reasonable interrogator would have ceased questioning of Plaintiff when it was clear that, due to his disability, he was unable to knowingly and voluntarily choose to speak with the officers, or to meaningfully give credible testimony regarding the incident.

31. Nevertheless, the defendants continued the interrogation for nearly a day.

32. At the end of a 17-hour interrogation, the defendants began a video recording in which ADA Itkin questioned Plaintiff for a final time.

33. During the interrogation, the defendants exploited Plaintiff's disability and suggestibility to coerce potentially incriminating statements from Plaintiff.

34. Given the totality of Plaintiff's behavior in the interrogation, no person could have reasonably believed that any of Plaintiff's statements were genuine admissions by a competent witness. Rather, any reasonable observer would have understood Plaintiff's statements to be the product of suggestion and intimidation by the defendants, facilitated by Plaintiff's disability.

35. Despite the intense interrogation and despite his limited ability to understand or participate in this kind of interrogation, Plaintiff maintained his innocence.

36. During the interrogation, defendants used trickery to obtain Plaintiff's DNA without his consent or court order.

37. Plaintiff's DNA did not match any relevant evidence.

38. There were no witnesses, nor physical evidence, nor forensic evidence to tie Plaintiff to the death of his friend, Ms. Pannell.

39. Moreover, Plaintiff's physical disabilities demonstrated to defendants that Plaintiff could not have caused the death of Ms. Pannell.

40. Despite the lack of competent credible evidence, the named defendants placed Plaintiff under arrest, accusing him of killing Ms. Pannell.

41. Defendants lacked probable cause or reasonable suspicion to believe Plaintiff had committed any crime.

42. Various paperwork was created in relation to the arrest and prosecution of Plaintiff. Defendants Nash, Hinrichs, Fontana, Oliver Lopez, Habert, Saul Lopez and Itkin created, contributed to, and/or approved this paperwork. These defendants understood that this paperwork would be used by prosecutors to determine what, if any, charges to bring against Plaintiff, and to prosecute those charges.

43. Among the false and misleading evidence created by defendants was a written statement, which defendants purported to be Plaintiff's statement, given to Defendants Oliver Lopez and Habert. However, that statement was created by Lopez and Habert, did not accurately reflect Plaintiff's version of events, and in any event was the product of suggestion and coercion by defendants.

44. Plaintiff was in fact charged with the murder of Denise Pannell.

45. Defendants Nash, Hinrichs, Fontana, Oliver Lopez, Habert, Saul Lopez, and Itkin communicated with representatives of the District Attorney's Office multiple times during the prosecution of Plaintiff. During those communications, defendants presented false and misleading versions of the evidence they gathered, causing the District Attorney's Office to pursue charges not warranted by the facts.

46. Because of the prosecution instigated by defendants, Plaintiff remained incarcerated for over five years.

47. During Plaintiff's incarceration, his wife passed away. He was therefore forced to attend her funeral in handcuffs and shackles, causing him to endure further humiliation.

48. On May 14, 2018 all charges against Plaintiff were dismissed, and he was finally released from custody.

49. Plaintiff's injuries were a direct result of the decision by defendants to pursue criminal charges against him based upon evidence which did not create probable cause or reasonable suspicion to believe he had committed any crime.

DAMAGES

50. As a direct and proximate result of the acts of defendants, Plaintiff suffered the following injuries and damages:

- a. Violation of his right to be free from unreasonable searches and seizures under the Fourth and Fourteenth Amendments to the US Constitution and Article 1, Section 12 of the New York State Constitution
- b. Violation of his right to Due Process of law under the Fourteenth Amendment to the US Constitution and Article 1, Section 6 of the New York State Constitution.
- c. Violation of his right to a Fair Trial under the Sixth and Fourteenth Amendments to the US Constitution and Article 1, Section 2 of the New York State Constitution.
- d. Loss of Liberty;
- e. Emotional distress, including fear, embarrassment, depression, and anxiety, suffered during his incarceration and continuing;
- f. Economic loss.

FIRST CAUSE OF ACTION

(False Arrest Under New York State Law)

- 51. The above paragraphs are here incorporated by reference.
- 52. Defendants subjected plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.
- 53. Defendants intended to confine plaintiff and in fact confined him.
- 54. Plaintiff was conscious of the confinement and did not consent to it.
- 55. The confinement was not privileged.
- 56. Plaintiff was damaged by his wrongful imprisonment.

SECOND CAUSE OF ACTION

(Malicious Prosecution Under New York State Law)

57. The above paragraphs are here incorporated by reference.
58. Defendants, acting with malice, initiated a prosecution against Plaintiff and caused him to be prosecuted.
59. Defendants did not have probable cause to initiate this proceeding.
60. The criminal proceedings were terminated in plaintiffs' favor.
61. As a result of the malicious prosecution implemented by defendants, Plaintiff was damaged.

THIRD CAUSE OF ACTION

(42 U.S.C. § 1983)

62. The above paragraphs are here incorporated by reference.
63. Defendants have deprived Plaintiff of his civil, constitutional and statutory rights under color of law and have conspired to deprive him of such rights and are liable to Plaintiff under 42 USC § 1983.
64. Defendants' conduct deprived Plaintiff of his right to be free of unreasonable searches and seizures, pursuant to the Fourth and Fourteenth Amendments to the United States Constitution.
65. Defendants' conduct deprived Plaintiff of his right to due process of law, pursuant to the Fourteenth Amendment to the United States Constitution.
66. Defendants created and presented false evidence against Plaintiff, thereby denying him his right to a fair trial pursuant to the Sixth and Fourteenth Amendment to the United States Constitution.

67. Defendants coerced an illegal false statement from Plaintiff, maliciously prosecuted Plaintiff without probable cause, conveyed false and misleading evidence to prosecutors, and failed to intervene in each other's obviously illegal actions.

68. Plaintiff has been damaged as a result of defendants' wrongful acts

FOURTH CAUSE OF ACTION

(Respondeat Superior – As to City of New York)

69. The above paragraphs are here incorporated by reference.

70. The defendants' tortious acts were undertaken within the scope of their employment by Defendant City of New York and in furtherance of the Defendant City of New York's interest.

71. As a result of defendants' tortious conduct in the course of their employment and in furtherance of the business of Defendant City of New York, Plaintiff was damaged.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants as follows:

- (A) compensatory damages in an amount to be determined at trial for each of Plaintiff's Causes of Action;
- (B) punitive damages in an amount to be determined at trial;
- (C) an order awarding Plaintiff reasonable attorneys' fees and costs;
- (D) such other further relief as the Court may deem just and proper.

Dated: New York, New York
March 28, 2019

Yours, etc.
LIAKAS LAW, P.C.

By: 

Nicholas Mindicino, ESQ.
Attorneys for Plaintiff
65 Broadway, 13th Floor
New York, New York 10006
(212) 937-7765

STATE OF NEW YORK)
) ss
COUNTY OF NEW YORK)

I, the undersigned, an attorney admitted to practice in the courts of New York State, state under penalty of perjury that I am one of the attorneys for Plaintiff in the within action; I have read the foregoing SUMMONS AND VERIFIED COMPLAINT and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe to be true. The reason this verification is made by me and not by my client, is that my client are not presently in the County where I maintain my offices. The grounds of my belief as to all matters not stated upon my own knowledge are the materials in my file and the investigations conducted by my office.

Dated: New York, New York
March 28, 2019



NICHOLAS MINDICINO, ESQ.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Lawrence Wright,

Plaintiff,

- against-

The City Of New York, Detective Nash, Detective
Michael Hinrichs, Detective Anthony Fontana,
Detective Oliver Lopez, Detective Michael Habert,
Police Officer Saul Lopez, and Assistant District
Attorney Nicole Itkin,

Defendants.

LIAKAS LAW, P.C.
Attorneys for Plaintiff(s)
65 Broadway - 13th Floor
New York, New York 10006
212-937-7765

SUMMONS and VERIFIED COMPLAINT

STATE OF NEW YORK, COUNTY OF NEW YORK, SS:

Nicholas Mindicino, the undersigned, an attorney admitted to practice in the Courts of New York State, affirms the following:

I further certify that my signature below acts as a "certification" for the documents attached hereto, in compliance with section 130-1.1-a of the Rules of the Chief Administrator (22 NYCRR).

Dated: New York, New York
March 28, 2019



Nicholas Mindicino, ESQ.

PLEASE TAKE NOTICE

- () that the within is a (certified) true copy of a Notice of _____ entered in the Office of the clerk of the within Entry named Court on _____
- () that an Order of which the within is a true copy will be presented for Notice of settlement to the Hon. _____ one of the Judges of the Settlement within named Court, on _____, at _____
-